

PERFORMANCE WORK STATEMENT (PWS) DRAFT

UNITED STATES MILITARY GROUP-IRAQ (USMILGP-Iraq)
SECURITY ASSISTANCE MENTORS AND CULTURAL
ADVISORS (SAMA)
PERFORMANCE WORK STATEMENT
SAMA 3.0

PART 1 GENERAL

1. INTRODUCTION

The contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to provide Security Assistance Mentor and Cultural Advisor (SAMA) support as defined in this Performance Work Statement except for those items specified as government furnished property and services. The contractor shall perform to the standards in this contract.

1.1 BACKGROUND

The primary mission of the United States Military Group – Iraq (USMILGP - Iraq), is to assist the Iraqi Government through Security Assistance (SA) and the Foreign Military Sales (FMS) program to increase their capability to counter and defeat terrorism effectively and provide a secure environment in which representative government, individual freedom, the rule of law, and free market economy can evolve and which, in time, will contribute to Iraq's external security and to the security of the Gulf Region. More specifically, the USMILGP - Iraq goal in advising and assisting the Ministry of Defense (MoD), Counter Terrorism Service (CTS) and the Ministry of Peshmerga Affairs (MoPA) is to build processes and institutional capacity within the ministry or bureau in order to place them on the critical path towards Iraqi security self-reliance.

1.2 OBJECTIVES

The goal is to improve MoD, CTS, and Ministry of the Peshmerga (MoPA) performance to attain the capability to organize, train, equip, and sustain all Iraqi Security Forces (ISF). Emphasis will be given to providing the Iraqis advice and assistance to maximize the effectiveness of their FMS purchases to arrive at solutions to the various issues they face in building the effectiveness of the MoD, CTS, and MoPA.

- Improved Process. MoD, CTS, and MoPA develop and implement policies, processes, and procedures to allow their respective ministries to fulfill their assigned responsibilities in the context of providing security forces capable of securing the populace, providing internal security, and possessing the foundations for defense against external threats.
- Improved Integration. MoD, CTS, and MoPA become capable of integrating and synchronizing their efforts between services within the MoD, with other Iraqi governmental and societal institutions across Sunni-Shi'a and Arab-Kurd ethnic groups in support of Iraqi sovereignty and democracy.
- Long-term Resiliency and Sustainability. MoD, CTS, and MoPA are able to develop holistic capability concepts that contribute to Iraqi National Objectives (Ways); and identify the resource streams necessary to make those capability concepts a reality (Means).

1.3 SCOPE

The intent of this acquisition is to provide advice and assistance to USMILGP - IRAQ senior personnel in their mission to support the Government of Iraq (GoI), in particular the MoD, CTS, and the MoPA, with key focus on core processes and systems which involve, but are not limited to, the following activities:

- Administration
- Force Development
- Procurement & Acquisition
- Contracting
- Training Management
- Public Affairs
- Logistics
- Personnel Management
- Professional Development
- Communications
- Planning and Operations
- Infrastructure Management
- Intelligence
- Executive Development

Contractor personnel shall assist the military and government personnel assigned to USMILGP - IRAQ in the assessment of MoD, CTS, or MoPA processes, policies, and systems and then advising, coaching, mentoring, training, and liaising with MoD, CTS, or MoPA officials to improve and refine these processes, policies, and systems. The Contractor shall also ensure that training facilitation and the degree of interaction between Contractor personnel and the Iraqis being trained will conform to evolving local Iraqi requirements as may be agreed upon between the Contractor and the Contracting Officer (KO).

1.4 PERIOD OF PERFORMANCE

The period of performance will consist of a 12-month base period with 4, 12-month evaluated option periods and include FAR Clause 52.217-8 Option to Extend Services for up to 6 additional months.

1.5 PLACE OF PERFORMANCE

The primary places of performance are Baghdad, Iraq, and Erbil, Iraq. In addition, the Contracting Officer (KO) may designate other temporary duty (TDY) locations, including but not limited to sites in the Middle East and the United States.

1.5.1 Duty Location. Contractor personnel will perform the bulk of their responsibilities on the US Embassy Compound with frequent visits to the offices of GoI officials. Travel to the various GoI offices will be provided by the Government and security will be provided by the Embassy's Regional Security Office (RSO).

1.5.2 Work Schedule. Contractor personnel will be expected to work a flexible schedule typically consisting of 40 hours per week, but not to exceed 50 hours per week.

1.6 QUALITY CONTROL

1.6.1 The contractor shall develop and maintain an effective Quality Control Program (QCP) to ensure services are performed in accordance with this PWS. The contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services. The

contractor's QCP is how the contractor assures themselves that the work complies with the requirements of the contract. After acceptance of the quality control plan the contractor shall receive the contracting officer's acceptance in writing of any proposed change to his QC system.

1.6.2 The QCP shall describe the methods for identifying and preventing problems well before the level of performance becomes unsatisfactory, and for corrective action in the event of unsatisfactory performance and will become the primary document from which the Contracting Officer Representative and the KO will provide quality assurance oversight and monitor this contract.

1.6.3 The QCP shall also provide a system for rating employee performance on at least a monthly basis (to include how well the Contractor on-site advisory employees meet performance deliverables/plans/ objectives identified in the PWS) and a system for replacing Contractor personnel whose performance falls below an acceptable level.

1.7 QUALITY ASSURANCE

1.7.1 The government shall evaluate the contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan. This plan is primarily focused on what the Government must do to ensure that the contractor has performed in accordance with the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and the minimum acceptable defect rate(s).

1.7.2. The Government retains the right to inspect all requirements of the contract. Contracting personnel may choose to periodically inspect requirements of the contract. Non-conformance with any contract requirement, whether specifically addressed in the PWS or not, is a "defect". The preferred course of action upon discovery of unacceptable service is to require the Contractor to re-perform at no additional cost to the Government. If the Contractor's re-performance does not meet the thresholds in the Quality Assurance Surveillance Plan (QASP) or the quality stipulated in any other part of the contract, COR personnel would notify the Contracting Officer immediately.

1.7.3. The intent of the surveillance approach is to gain confidence in the contractor's way of doing business and then adjusting the level of oversight to a point that maintains that confidence. With this intent, the surveillance approach may be subject to change throughout the duration of the contract. All Government evaluators should be prepared to periodically update the surveillance approach as required.

1.8 NON-PERSONAL SERVICES.

The Government shall neither supervise contractor employees nor control the method by which the contractor performs the required tasks. Under no circumstances shall the Government assign tasks to, or prepare work schedules for, individual contractor employees. It shall be the responsibility of the contractor to manage its employees and to guard against any actions that are of the nature of personal services, or give the perception of personal services. If the contractor believes that any actions constitute, or are perceived to constitute personal services, it shall be the contractor's responsibility to notify the KO immediately.

1.9 BUSINESS RELATIONS.

The contractor shall successfully integrate and coordinate all activity needed to execute the requirement. The contractor shall manage the timeliness, completeness, and quality of problem identification. The contractor shall provide corrective action plans, proposal submittals, timely

identification of issues, and effective management of subcontractors. The contractor shall seek to ensure customer satisfaction and professional and ethical behavior of all contractor personnel.

1.10 SECURITY REQUIREMENTS.

All Contractor personnel must obtain all appropriate USMILGP - IRAQ and Department of State (DoS) Badges, including the Common Access Card and U.S. Mission Iraq badge. All SAMA positions require a SECRET security clearance. The Contractor shall ensure a facility clearance (FCL) is on file with Headquarters United States Army Intelligence & Security Command (HQ USAINSCOM). Selected Contractor personnel assigned to this project shall require access to classified information up to a Secret security clearance.

1.11 CONTRACTING OFFICER REPRESENTATIVE (COR).

The (COR) will be identified by separate letter. The COR monitors all technical aspects of the contract and assists in contract administration. The COR is authorized to perform the following functions: assure that the Contractor performs the technical requirements of the contract: perform inspections necessary in connection with contract performance: maintain written and oral communications with the Contractor concerning technical aspects of the contract: issue written interpretations of technical requirements, including Government drawings, designs, specifications: monitor Contractor's performance and notifies both the Contracting Officer and Contractor of any deficiencies; coordinate availability of government furnished property, and provide site entry of Contractor personnel. A letter of designation issued to the COR, a copy of which is sent to the Contractor, states the responsibilities and limitations of the COR, especially with regard to changes in cost or price, estimates or changes in delivery dates. The COR is not authorized to change any of the terms and conditions of the resulting order.

1.12 KEY PERSONNEL.

The following personnel are considered key personnel by the government: 1 Site Lead and Movement Coordinator, 4 SAMA MoD Advisor(s), and 1 SAMA MoPA Advisor for a total of 1 Site Lead and 5 Security Assistance Mentors and Cultural Advisors.

The Contractor shall appoint in writing to the Procuring Contract Officer (PCO) a Project Manager who shall be the Contractor's central point of contact with the Government and shall be authorized to direct performance of all work under the contract. The Project Manager shall have knowledge of all regulatory and contractual policies, procedures, and documentation relative to or required by the PWS, and shall be responsible for enforcement of all contractual obligations as directed by the contract, PWS, and PCO. The Project Manager shall be the contractor's in-house supervisor in all respects. For example, only the Project Manager, not Government personnel shall have the authority to change an individual contract employee's work hours, to act upon contract employee's leave requests, to assign work or to change the nature of a contract employee's duties. Attempts by Government employees to exercise these functions, other than from the PCO through the Project Manager as indicated in this paragraph, shall be null and void. It is the Contractor's responsibility to designate a point of contact or person in charge that is the sole contact with the Government for the duration of performance under any subsequent contract. It is in the best interest of all parties to have an established hierarchy or chain of command for communication.

The key personnel specified in this contract are considered to be essential and shall be assigned for the life of the contract, barring circumstances outside the control of the Contractor, (e.g., death, disability, etc.).

At least 30 days prior to diverting any of the specified individuals to other programs or contracts

(or as soon as possible, if an individual must be replaced, for example, as a result of leaving the employ of the Contractor), the Contractor shall notify the Contracting Officer and shall submit comprehensive justification for the diversion or replacement request (including proposed substitutions for key personnel) to permit evaluation by the Government of the impact on performance under this contract. The Contractor shall not divert or otherwise replace any key personnel without the written consent of the Contracting Officer. The Government may modify the contract to add or delete key personnel at the request of the Contractor or Government.

Qualifications for all key personnel are listed below. The Government considers the personnel identified below as the minimum requirement for designation as “Key Personnel”:

1.12.1 Education. All Contractor personnel must have as a minimum a verifiable four year degree at an accredited institution in an area relating to the position description or a four year degree in another field, but with a high level of experience in the area relating to the position description. The Government may waive the requirement for a four-year degree on a case by case basis when the Government determines a candidate for deployment has significant experience that could overcome the lack of a four-year degree.

1.12.1.1 Automation. All Contract personnel must be proficient in operating a personal computer and experienced in the use of Microsoft Office software (including, at a minimum, Outlook, Word, Excel, and PowerPoint). The Government will not provide computer training in Microsoft Office or any other software, nor will the Government pay for Contractor-provided automation training.

1.12.1.2 Local Customs and Culture. Contractor personnel shall adapt their methods and other aspects of the training to local Iraqi customs and culture. The Contractor shall provide the necessary expertise for that purpose. The Contractor shall ensure that in its recruitment of personnel that they seek the necessary expertise and knowledge to conduct the operation effectively with respect to Iraqi political structure and Iraqi cultural concerns and sensitivities.

1.12.2. SAMA Site Lead and Movement Coordinator. The SAMA Site Lead directs SAMA contract personnel to ensure max effectiveness in supporting the United States Military Group – Iraq (USMILGP - IRAQ) mission. The SAMA Site Lead responsibilities include personnel management, planning, administration, project management, travel, and current operations of the SAMA cultural advisors in support of USMILGP - IRAQ. The SAMA Site Lead will also perform the role of Movement Coordinator where the coordinator receives and processes air and ground movement requests for Embassy Air and DOS Charter Air movements, and secure ground transportation in support of USMILGP - IRAQ. The Movement Coordinator also coordinates all MILAIR movements for rotary and fixed wing military aircraft. The Movement Coordinator maintains access to the United States Transportation Command’s Single Mobility System (SMS). The Movement Coordinator also tracks and records all Embassy Air and Ground movements, exceptions to policy, and Distinguished Visitor movements.

1.12.2.1 Deliverables. The Site Lead is responsible for the following:

- Maintaining accountability and submitting PERSTAT daily to USMILGP - IRAQ
- Updating the COR on SAMA personnel travel as required
- Coordinating movements to include Embassy Air flights, DOS Charter flights, ground movements, and Distinguished visitor movements.
- Provide monthly summary of movements to the COR and KO

1.12.2.2 Required education and job skills:

- High School diploma or equivalent required, Bachelor's degree desired.
- Possess demonstrated skills and experience commensurate with those expected of a military non-commissioned officer with 8-12 years' experience in leadership positions, experienced in planning and executing operations or an equivalent amount of corporate or private sector management experience.
- To perform movement coordination duties, be proficient and experienced in coordinating air and ground movements, maintain visibility of the movements. Key responsibilities may include planning and management of movements, force protection assessments, current operations, logistics,, and serving as the subject matter expert for air and ground movements
- Microsoft Office proficient.

1.12.3. MoD, CTS and MoPA SAMA Duty Description. Advisor to senior Ministry of Defense and Ministry of Peshmerga officials. Assist USMILGP - IRAQ with the responsibility to manage and execute the duties at the ministerial level. Advise and assist USMILGP - IRAQ with the development of Ministerial engagement strategies to enhance the systemic capability and continued functional development of an effective Iraqi Ministry of Defense. Assist USMILGP - IRAQ in the development of strategies to facilitate timely and effective decision-making, and information sharing capabilities, through daily observation and written reports. Develop solid professional and cultural relationships with MoD/MoPA senior officials, and other ministries and agencies, to enhance and further USMILGP - IRAQ's efforts to foster a sound working relationship with our Iraqi counterparts. The SAMA shall be responsible for daily and frequent personal contact with MoD/MoPA leadership and officials to establish a relationship built on trust, confidence, and confidentiality. The SAMA will assist in the development, implementation, and oversight of policies and procedures to enhance the personal and professional effectiveness in execution of official duties.

1.12.3.1. Deliverables. The content of the SAMA's interactions will include the following general topics:

- Integration of military and civilian elements of the Ministry Headquarters
- Manage operational and administrative planning requirements to include suspense, schedules, and strategic and operational plans
- Development of a daily rhythm to meet all requirements within the parameters of available resources
- Development and scheduling of key leader engagement strategies to enhance advisor effectiveness and leverage systematic improvement in USMILGP - IRAQ capabilities, as well as coordination at the highest levels of leadership.
- Prepare and deliver briefings to senior military officials on the status of the MoD/MoPA staff, systems, programs and transition progress.

1.12.3.2 Required education and job skills:

- A Bachelor's Degree
- Fluent in Arabic (MoD)
- Fluent in Kurdish (MoPA)
- Possess a sound and current working knowledge of MoD organizational structure and operations.
- Previous strategic experience with US Forces in Iraq since 2011 as a civilian contractor or as a uniformed service member.
- Significant knowledge, education, and experience in civil-military relations in a democratic government
- Excellent written and oral communications skills.

- Microsoft Office proficient

1.12.3.3 Highly Preferred Education and Job Skills:

- Master's Degree in Middle Eastern Studies/Culture.
- One year or more experience working with Iraqi Ministry of Defense Officials.

1.12.4 Language. All SAMA must be fluent in English and Arabic, both written and spoken. Excellent interpersonal and verbal communication skills are also important.

1.13 CONTRACTOR TRAVEL

Contractor personnel will be required periodically to travel by multiple means of ground and air transportation within the United States Central Command (USCENTCOM) Area of Responsibility (AOR), principally within Iraq, to meet mission requirements. Primary modes of transportation within USCENTCOM AOR are armored vehicles, helicopters, or fixed-wing aircraft. If commercial air travel is necessary and approved by the KO, such travel shall be IAW the Joint Travel Regulation (JTR). Travel days may include weekends and holidays. The Contractor shall coordinate with the COR to make travel arrangements for Contractor personnel to travel in support of the contract. The KO or his/her designee shall approve the travel request prior to any cost being incurred.

1.13.1 Travel Documents. The Contractor shall obtain all passports, visas, and country clearances necessary to travel to and from work in Iraq. The COR will assist with meeting certain requirements of the U.S. Embassy. Personnel may not depart the continental United States without a (USG) issued country clearance for Iraq or an Iraqi Visa. The USG is not responsible for any fine or additional transit time/cost incurred by contract personnel who fail to follow Visa requirements, and any other entry requirement of a sovereign nation. The Contractor shall ensure that personnel obtain all immunizations, as required.

1.13.2 Deployment Processing: For U.S. Citizens, deployment processing consists of processing through an approved Continental United STATES (CONUS) Replacement Center (CRC).

1.13.2.1 CRC. Contract personnel will be required to complete deployment training at designated CONUS deployment centers, such as the CRC at Fort Bliss, Texas, and redeploy through such centers upon completion of their assignments. Locations of designated deployment centers may vary.

1.13.3 Payment of Travel and Per Diem for Temporary Duty (TDY) Assignments. Contractor personnel may be required to go on TDY based on the mission requirement. The Contractor is authorized to reimburse Contractor personnel for costs incurred and per diem costs while officially in a TDY status. Payments will be made IAW Joint Travel Regulation (JTR) rates. For a Contractor employee to be considered officially in a TDY status, the COR must provide the KO with a written request for TDY in advance of the travel. The request must include at a minimum the location(s) of the TDY, the dates of the assignment, and the purpose of the TDY. Once received, the KO will review the request, make any necessary coordination with the Contractor, and provide confirmation of approval back to the COR.

1.13.4 Travel Procedures for Rest and Recuperation (R&R)

Contractor employees are authorized to schedule leave for a period not exceeding thirty (30)

consecutive days with the understanding that such time may be exceeded due to extenuating circumstances, e.g., weather delays, or an inability to travel because of illness/injury, etc. As directed by the Government, all Contractor employees must take Embassy Air Charter Flights in and out of Iraq to Amman, Jordan. Since charter flights are a Government directed requirement, Contractor shall be reimbursed for round trip charter flights from Baghdad, Iraq to Amman, Jordan. Contractor employees will travel to and from Iraq utilizing the following: the Embassy Air charter flights to Amman, Jordan and commercial flight to the approved R&R destination. Contractor will be reimbursed for the charter flights in full (inclusive of indirect expense) and an up to amount of \$3,000 per R&R or \$6,000 annual cap on commercial round trip flight(s) exclusive of indirect expense. Only the costs for such flights (exclusive of excess baggage fees) shall be reimbursed by the USG provided that the contractor's Project Manager discusses all R&R travel arrangements with the COR prior to booking official arrangements in order to ensure the correct flight is chosen for reimbursement purposes. All costs for follow-on travel inclusive but not limited to per-diem, lodging, and car rental after arriving at the destination of the Government chartered flights are the responsibility of the contractor. For leave requests exceeding thirty (30) consecutive days or for utilizing alternate transportation methods from the ones listed in this section, including Embassy Air from the BDSC to Amman, Jordan, the Contractor must first obtain prior approval from the COR, who may require additional approval from the Chief, USMILGP - IRAQ prior to granting approval to the Contractor. Contractor employees are allowed up to two R&Rs per 12-month period as long as the 12-months worked are consecutive under the contract. A contractor employee receiving two R&Rs per 12-months cannot exceed six weeks in length between the two R&Rs combined unless the time exceeded is due to extenuating circumstances, e.g., weather delays, or an inability to travel because of illness/injury, etc.

1.14 OTHER DIRECT COSTS.

Other Direct Costs (ODC's) when approved by the Government and incurred by the Contractor in performance of tasks will be reimbursed by the government. The contractor shall obtain prior approval from the COR for micro purchases (< \$3K) and the Contracting Officer approval for all purchases over the micro purchase level. ODC's include storage, travel, materials, supplies and other supported direct costs. Only actual costs for ODCs that are supported with detail sufficient for the Government to verify that costs are reasonable and in performance of tasks will be reimbursed.

1.15 DATA RIGHTS.

All documents and materials produced under this contract shall be Government owned and are the property of the Government will all rights and privileges of ownership/copyright as identified in DFARS 252.227-7013.

1.16 ORGANIZATIONAL CONFLICT OF INTEREST:

Contractor and subcontractor personnel performing work under this contract may receive, have access to or participate in the development of proprietary or source selection information (e.g., cost or pricing information, budget information or analyses, specifications or work statements, etc.) or perform evaluation services which may create a current or subsequent Organizational Conflict of Interests (OCI) as defined in FAR Subpart 9.5. The Contractor shall notify the Contracting Officer immediately whenever it becomes aware that such access or participation may result in any actual or potential OCI and shall promptly submit a plan to the Contracting Officer to avoid or mitigate any such OCI. The Contractor's mitigation plan will be determined to be acceptable solely at the discretion of the Contracting Officer and in the event the Contracting Officer unilaterally determines that any such OCI cannot be satisfactorily avoided or mitigated, the Contracting Officer may effect other remedies as he or she deems necessary, including prohibiting the Contractor from participation in subsequent contracted requirements

which may be affected by the OCI.

1.17 PHASE IN /PHASE OUT PERIOD.

To minimize any decreases in productivity and to prevent possible negative impacts on additional services, the Contractor shall have personnel on board, during the [30 day.] phase in/ phase out periods. During the phase in period, the Contractor shall become familiar with performance requirements in order to commence full performance of services on the contract start date.

PART 2 DEFINITIONS & ACRONYMS

2. DEFINITIONS AND ACRONYMS:

2.1. DEFINITIONS:

2.1.1. **CONTRACTOR.** A supplier or vendor awarded a contract to provide specific supplies or service to the government. The term used in this contract refers to the prime.

2.1.2. **CONTRACTING OFFICER.** A person with authority to enter into, administer, and or terminate contracts, and make related determinations and findings on behalf of the government. Note: The only individual who can legally bind the government.

2.1.3. **CONTRACTING OFFICER'S REPRESENTATIVE (COR).** An employee of the U.S. Government appointed by the contracting officer to administer the contract. Such appointment shall be in writing and shall state the scope of authority and limitations. This individual has authority to provide technical direction to the Contractor as long as that direction is within the scope of the contract, does not constitute a change, and has no funding implications. This individual does NOT have authority to change the terms and conditions of the contract.

2.1.4. **DEFECTIVE SERVICE.** A service output that does not meet the standard of performance associated with the Performance Work Statement.

2.1.5. **DELIVERABLE.** Anything that can be physically delivered, but may include non-manufactured things such as meeting minutes or reports.

2.1.6. **KEY PERSONNEL.** Contractor personnel that are evaluated in a source selection process and that may be required to be used in the performance of a contract by the Key Personnel listed in the PWS. When key personnel are used as an evaluation factor in best value procurement, an offer can be rejected if it does not have a firm commitment from the persons that are listed in the proposal.

2.1.7. **PHYSICAL SECURITY.** Actions that prevent the loss or damage of Government property.

2.1.8. **QUALITY ASSURANCE.** The government procedures to verify that services being performed by the Contractor are performed according to acceptable standards.

2.1.9. **QUALITY ASSURANCE Surveillance Plan (QASP).** An organized written document specifying the surveillance methodology to be used for surveillance of contractor performance.

2.1.10. **QUALITY CONTROL.** All necessary measures taken by the Contractor to assure that the quality of an end product or service shall meet contract requirements.

2.1.11. **SUBCONTRACTOR.** One that enters into a contract with a prime contractor. The Government does not have privity of contract with the subcontractor.

2.1.12. **WORK DAY.** The number of hours per day the Contractor provides services in accordance with the contract.

2.1.12. **WORK WEEK.** Monday through Friday, unless specified otherwise.

2.2. ACRONYMS:

ACOR	Alternate Contracting Officer's Representative
AFARS	Army Federal Acquisition Regulation Supplement

AR	Army Regulation
CCE	Contracting Center of Excellence
CFR	Code of Federal Regulations
CONUS	Continental United States (excludes Alaska and Hawaii)
COR	Contracting Officer Representative
COTR	Contracting Officer's Technical Representative
COTS	Commercial-Off-the-Shelf
DA	Department of the Army
DD250	Department of Defense Form 250 (Receiving Report)
DD254	Department of Defense Contract Security Requirement List
DFARS	Defense Federal Acquisition Regulation Supplement
DMDC	Defense Manpower Data Center
DOD	Department of Defense
FAR	Federal Acquisition Regulation
HIPAA	Health Insurance Portability and Accountability Act of 1996
KO	Contracting Officer
OCI	Organizational Conflict of Interest
OCONUS	Outside Continental United States (includes Alaska and Hawaii)
ODC	Other Direct Costs
PIPO	Phase In/Phase Out
POC	Point of Contact
PRS	Performance Requirements Summary
PWS	Performance Work Statement
QA	Quality Assurance
QAP	Quality Assurance Program
QASP	Quality Assurance Surveillance Plan
QC	Quality Control
QCP	Quality Control Program
TE	Technical Exhibit

PART 3
GOVERNMENT FURNISHED PROPERTY, EQUIPMENT, AND SERVICES

3. GOVERNMENT FURNISHED ITEMS AND SERVICES:

3.1 Billeting. The USG will provide military transportation as necessary and three meals per day in the cafeteria and quarters on a U.S. Mission – Iraq (USM-I) installation.

3.2 Life Support (medical). The Contractor will provide medical support for all Contractor personnel. This is typically done by arranging with commercial providers in the International Zone (IZ). Work locations may be remote and the working and living conditions may be austere, consisting of tents, containerized housing units with separately located shower and toilet facilities or dormitory type, hard-walled buildings. Additionally, work may be required to be performed in potentially hostile environments with threats of attacks via direct fire, rocket, mortar, or improvised explosive device (IED).

3.3 In Country Transportation. Contractor personnel shall not plan on having access to vehicles or self-drive capability. They will have access to shuttle services where available. However, employees will be required to walk across compounds, in all weather conditions to reach the dining facilities and offices. Transportation to and from Iraq is via commercial air. Movement within Iraq will be by USG air and vehicles with security provided.

3.4 Intra-Country Transportation. The Contractor shall provide all transportation to and from Baghdad International Airport (BIAP) for entry to and exit from Iraq for purposes to include mobilization and demobilization and R&R. At Government discretion, transportation to Amman, Jordan may be provided by the Government. The Contractor will then be responsible for any follow-on travel.

3.5 Communication Equipment/Services. The USG will provide office equipment and office supplies required for performance. This includes automation equipment and network connectivity. The USG will provide adequate computer support and telephone access to enable Contractor personnel to meet the stated requirements. The contractor shall not pay for, rent, lease, purchase, computers, or any other non-USG automation equipment. USG cell phones may be provided on an as available and as required basis to perform official USG business only. Contractor personnel are not authorized to perform official duties with privately owned equipment without prior written approval from the KO.

3.6 Damage/Defective GFE. Contractor personnel must report damage to government facilities and equipment immediately upon discovery of such damage. Equipment found to be defective must also be reported in a timely manner to allow for repair or replacement. Damaged or defective reports will be submitted to the COR.

3.7 Organizational Clothing and Individual Equipment (OCIE) and Personal Protective Equipment (PPE). Contractor personnel shall not draw OCIE or PPE while processing through a CONUS Replacement Center (CRC). OCIE is not required for the performance of this contract and PPE will be provided upon arrival at the U.S. Embassy in Baghdad. It is impossible to bring most OCIE and PPE into Iraq through Customs in the commercial airports. The Contractor is fully responsible for any OCIE or PPE that is lost in transit for any reason.

PART 4
CONTRACTOR FURNISHED ITEMS AND SERVICES

4. CONTRACTOR FURNISHED ITEMS AND RESPONSIBILITIES:

4.1 General: The Contractor shall furnish all supplies, equipment, facilities, and services required to perform work under this contract that are not listed under Section 3 of this PWS.

4.2 Secret Facility Clearance: The contractor shall possess and maintain a SECRET facility clearance from the Defense Security Service. The Contractor's employees, performing work in support of this contract shall have been granted a SECRET security clearance from the Defense Industrial Security Clearance Office. The DD 254 is provided as Attachment [Attachment 0004].

4.3. Materials: N/A.

4.4. Equipment: The Contractor shall provide medical support for all Contractor Personnel. The Contractor shall provide all transportation to and from Baghdad International Airport (BIAP) for entry to and exit from Iraq for purposes to include mobilization and demobilization and R&R.

PART 5 SPECIFIC TASKS

5. SPECIFIC TASKS:

5.1 CONTRACTOR MANPOWER REPORTING

The contractor shall report ALL contractor labor hours (including subcontractor labor hours) required for performance of services provided under this contract via a secure data collection site. The contractor is required to completely fill in all required data fields using the following web address: <http://www.ecmra.mil/>, and then click on “Department of the Army CMRA” or the icon of the DoD organization that is receiving or benefitting from the contracted services.

Reporting inputs will be for the labor executed during the period of performance during each Government fiscal year (FY), which runs October 1 through September 30. While inputs may be reported any time during the FY, all data shall be reported no later than October 31 of each calendar year, beginning with 2013. Contractors may direct questions to the help desk by clicking on “Send an email” which is located under the Help Resources ribbon on the right side of the login page of the applicable Service/Component’s CMR website.

5.2 CONTRACTOR TRAINING

AT Level I Training. All Contractor employees, to include Subcontractor employees, requiring access Army installations, facilities and controlled access areas shall complete AT Level I awareness training within 14 calendar days after contract start date or effective date of incorporation of this requirement into the contract, whichever is applicable. The Contractor shall submit certificates of completion for each affected Contractor employee and Subcontractor employee, to the COR or to the contracting officer, if a COR is not assigned, within 14 calendar days after completion of training by all employees and Subcontractor personnel. AT level I awareness training is available at the following website: <https://atlevel1.dtic.mil/at>.

Access and General Protection/Security Policy and Procedures. Contractor and all associated Subcontractors employees shall comply with applicable installation, facility and area commander installation/facility access and local security policies and procedures (provided by Government representative). The Contractor shall also provide all information required for background checks to meet installation access requirements to be accomplished by installation Provost Marshal Office, Director of Emergency Services or Security Office. Contractor workforce must comply with all personal identity verification requirements as directed by DoD, HQDA and/or local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition (FPCON) at any individual facility or installation change, the Government may require changes in Contractor security matters or processes.

AT Awareness Training for Contractor Personnel Traveling Overseas. This training is required for U.S. based Contractor employees and associated Subcontractor employees to make available and to receive Government provided area of responsibility (AOR) specific AT awareness training as directed by AR 525-13. Specific AOR training content is directed by the combatant commander with the unit ATO being the local point of contact.

iWATCH Training. The Contractor and all associated Subcontractors shall brief all employees on the local iWATCH program (training standards provided by the requiring

activity ATO). This local developed training will be used to inform employees of the

types of behavior to watch for and instruct employees to report suspicious activity to the COR. This training shall be completed within 30 calendar days of contract award and within 30 calendar days of new employees commencing performance with the results reported to the COR NLT 45 calendar days after contract award.

Contractor Employees Who Require Access to Government Information Systems. All Contractor employees with access to a Government info system must be registered in the ATCTS (Army Training Certification Tracking System) at commencement of services and must successfully complete the DoD Information Assurance Awareness prior to access to the IS and then annually thereafter.

For Contracts that Require an OPSEC Standing Operating Procedure/Plan. The Contractor shall develop an OPSEC Standing Operating Procedure (SOP)/Plan within 90 calendar days of contract award, to be reviewed and approved by the responsible Government OPSEC officer, per AR 530-1, Operations Security. This SOP/Plan will include the Government's critical information, why it needs to be protected, where it is located, who is responsible for it, and how to protect it. In addition, the Contractor shall identify an individual who will be an OPSEC Coordinator. The Contractor will ensure this individual becomes OPSEC Level II certified per AR 530-1.

For Contracts that Require OPSEC Training. Per AR 530-1, Operations Security, new Contractor employees must complete Level I OPSEC training within 30 calendar days of their reporting for duty. All Contractor employees must complete annual OPSEC awareness training.

For Information assurance (IA)/information technology (IT) training. All Contractor employees and associated Subcontractor employees must complete the DoD IA awareness training before issuance of network access and annually thereafter. All Contractor employees working IA/IT functions must comply with DoD and Army training requirements in DoD 8570.01, DoD 8570.01-M and AR 25-2 within six months of employment.

For Information Assurance (IA)/Information Technology (IT) certification. Per DoD 8570.01-M, DFARS 252.239.7001 and AR 25-2, the Contractor employees supporting IA/IT functions shall be appropriately certified upon contract award. The baseline certification as stipulated in DoD 8570.01-M must be completed upon contract award.

For Contractors Authorized to Accompany the Force. DFARS Clause 252.225-7040, Contractor Personnel Authorized to Accompany U.S. Armed Forces Deployed Outside the United States. The clause shall be used in solicitations and contracts that authorize Contractor personnel to accompany U.S. Armed Forces deployed outside the U.S. in contingency operations; humanitarian or peacekeeping operations; or other military operations or exercises, when designated by the combatant commander. The clause discusses the following AT/OPSEC related topics: required compliance with laws and regulations, pre-deployment requirements, required training (per combatant command guidance), and personnel data required.

For Contract Requiring Performance or Delivery in a Foreign Country, DFARS Clause 252.225-7043, Antiterrorism/Force Protection for Defense Contractors outside the US. The clause shall be used in solicitations and contracts that require performance

or delivery in a foreign country. This clause applies to both contingencies and non-contingency support. The key AT requirement is for non-local national Contractor

personnel to comply with theater clearance requirements and allows the combatant commander to exercise oversight to ensure the Contractor's compliance with combatant commander and subordinate task force commander policies and directives.

For Contracts That Require Handling or Access to Classified Information. Contractor shall comply with FAR 52.204-2, Security Requirements. This clause involves access to information classified "Confidential," "Secret," or "Top Secret" and requires Contractors to comply with— (1) The Security Agreement (DD Form 441), including the National Industrial Security Program Operating Manual (DoD 5220.22-M); any revisions to DoD 5220.22-M, notice of which has been furnished to the Contractor.

Combat Trafficking in Persons. Mandatory General Awareness. All Contractor employees and associated Subcontractor

Threat Awareness Reporting Program. For all contractors with security clearances. Per AR 381-12 Threat Awareness and Reporting Program (TARP), contractor employees must receive annual TARP training by a CI agent or other trainer.

5.3 PROGRAM MANAGEMENT AND ADMINISTRATION

5.3.1 Program Management and Administration shall consist of the following specific duties which include, but are not limited to:

5.3.2 Perform all administrative oversight functions associated with Contractor personnel. These functions include, but are not limited to mobilization/demobilization, coordination with CONUS Replacement Center (CRC) for reservations, coordination of Common Access Cards (CACs), coordination of Synchronized Pre-deployment Operational Tracker (SPOT) entries, coordination of security clearances, coordination of non-disclosure statements, rest and recuperation, training requirements, pay issues, and recruiting.

5.3.3 Coordinate and track all administrative and human resource issues for Contractor personnel. Forecast vacancies and recruit replacements.

5.3.4 Serve as the corporate representative for written and verbal counseling as well as dismissal of Contractor personnel in accordance with Contractor corporate Human Resource policy. Interact with the KO and the Contracting Officer's Representative (COR) to resolve communication and performance shortfalls.

5.3.5 Develop systems and maintain records that provide for the proper evaluation, control, and documentation of assigned activities. Prepare a variety of written correspondence, reports, procedures, directives, and other materials and provide these reports to the KO and the (COR) as required.

5.3.6 Provide for the selection, training, professional development, and work evaluation of subordinate staff and make recommendations on hiring, termination, promotion, and discipline as required.

5.3.7 Mobilization of New Personnel. The Contractor shall complete the mobilization according to the timeline agreed upon by the KO and in accordance with the Contractor's Mobilization and Employee Phase-In Plan. Contractor shall coordinate with the KO and COR to ensure the highest priority areas are mobilized first.

5.3.8 Replacement Personnel. If at any time during the period of performance, Contractor personnel are not able to continue task performance, the Contractor shall notify the COR and KO 15 days prior to termination of employment, provide the Government with the details of the replacement sufficient to prove qualification NLT 7 days prior to termination of the incumbent, and provide that replacement within timeline stated in the Contractor submitted Mobilization and Employee Phase-In Plan.

5.3.9 In the event an employee voluntarily leaves their position or is removed for acts that disrupt good order and discipline or violate applicable laws, regulations, orders, instructions, policies or directives, or is directed to remove and replace Contractor personnel who jeopardize or interfere with mission accomplishment or who fail to comply with or violate applicable requirements of this contract prior to serving six months in Iraq, the Contractor shall not receive reimbursement for their de-mobilization nor for the mobilization of the replacement employee.

5.3.10 Work Assignment. The Contractor must take direction only from the KO/COR, not any other United States Government (USG) personnel.

5. 4 CONTRACTOR REPORTS AND DELIVERABLES

5.4.1 The Contractor shall submit all reports electronically, in the Contractor's format, and using Microsoft Office. Submitted reports are the property of the USG and will be treated as For Official Use Only (FOUO).

5.4.2 Daily Accountability Report. The Contractor shall submit a daily accountability report for all Contractor personnel in Iraq to the USMILGP - IRAQ Human Resources section. The suspense time for this report shall be coordinated with the USMILGP - IRAQ Human Resources Director.

5.4.3 Self-Assessment Reports: The Contractor shall submit monthly self-assessment reports to the COR and a quarterly roll up self- assessment for submission through the KO. The report shall include the following:

- Personnel assigned during the reporting period
- Duties/Activities accomplished during the reporting period
- Problems and corrective actions taken
- Issues/Concerns
- Personnel Status –include gains and losses
- Recommended plan/strategy adjustments and way ahead

5.4.4 The KO and/or COR shall reject or require correction to any reports or deliverables that do not meet the above requirements and other requirements as stated on each individual task order.

PART 6
APPLICABLE PUBLICATIONS

6. APPLICABLE PUBLICATIONS (CURRENT EDITIONS)

6.1. The Contractor must abide by all applicable regulations, publications, manuals, and local policies and procedures.

PART 7
ATTACHMENT/TECHNICAL EXHIBIT LISTING

7. Attachment/Technical Exhibit List:

- 7.1. Attachment 1/Technical Exhibit 1 – Performance Requirements Summary
- 7.2. Attachment 2/Technical Exhibit 2 – Deliverables Schedule

TECHNICAL EXHIBIT 1

Performance Requirements Summary

The contractor service requirements are summarized into performance objectives that relate directly to mission essential items. The performance threshold briefly describes the minimum acceptable levels of service required for each requirement. These thresholds are critical to mission success.

Performance Objective	Performance Threshold	Method of Surveillance
PRS # 1. The contractor shall provide Program Management (Overall Program). PWS Para 1.12, 1.13, 5.3, 5.4	No more than 2 validated customer complaints in a 30 calendar day period.	Validated by COR and KO.
PRS # 2 The contractor shall provide Program Management (Communication) Timeliness of Meeting Minutes, Reports, Plans, and Data. PWS Para 5.3, 5.4	Reports are timely, complete and accurate 95% of the time.	Validated by COR.
PRS # 3 The contractor shall provide Program Management (Communication) Accuracy of Meeting Minutes, Reports, Plans, and Data. PWS Para 5.3, 5.4	No more than 2 rejection within a 30 calendar day period.	Validated by COR.
PRS # 4 The contractor shall provide Program Management (Initial Contract Mobilization of New Personnel) (timeliness). PWS Para 5.3, 5.4	100% mobilized within specified time-period stated in the contractor's Mobilization Plan and agreed to by the KO.	Validated by COR and KO.
PRS # 5 The contractor shall provide Program Management (Qualifications of Personnel). PWS Para 1.12, 5.3	100% of Contractor personnel qualifications presented to the USG meet contract and contract standards.	Validated by COR and KO.
PRS # 6 The Contractor shall provide Program Management (Personnel Replacement)(timeliness). PWS Para 1.12	Provide replacement personnel within 75 days.	Validated by KO.
PRS # 7 The contractor shall provide Program Management (Personnel Retention). PWS Para 1.12, 5.3	Personnel vacancy rate is 25% or less.	Validated by KO.

TECHNICAL EXHIBIT 2

DELIVERABLES SCHEDULE

<u>Deliverable</u>	<u>Frequency</u>	<u># of Copies</u>	<u>Medium/Format</u>	<u>Submit To</u>
Daily Accountability Report. PWS para 5.4.2	Daily	1 Copy	Microsoft Office	USMILGP - IRAQ Attn: COR, Contract Specialist
Self-Assessment Reports. PWS para 5.4.3	Monthly	1 Copy	Microsoft Office	USMILGP - IRAQ Attn: COR, PCO, Contract Specialist
Self-Assessment Reports. PWS para 5.4.3	Quarterly	1 Copy	Microsoft Office	ACC-RI Attn: COR, PCO, Contract Specialist